OBDD RFP No. C2021507
Oregon Buys #S-12300-00006688

Request for Proposals:
"Strategic Planning Consultant"

Proposal due date: May 16, 2023, at 3:00 p.m. Pacific Time

1.0 SOLICITATION INFORMATION AND REQUIREMENTS

1.1 GENERAL INFORMATION

The Oregon Business Development Department ("Business Oregon" or "Department") is seeking proposals from consultants to guide its development of a comprehensive three-year strategic plan. Competitive candidates will have organizational and economic development expertise.

The new strategic plan should build from the previous five-year strategic plan (2018-2022), and also leverage other recent plans produced by the Department, such as Business Oregon's IT Strategic Plan (2019), Employee Engagement Survey (2021), Oregon Innovation Plan (2021), Business Oregon Diversity Equity and Inclusion Assessment (2021), Strategic Assessment of Incentives (2021), and COVID Economic Recovery Plan (2022).

The budget for this solicitation is not predetermined but is expected to be no more than $150,000, beginning upon contract execution and concluding on December 31, 2023.

1.2 DESCRIPTION OF SERVICES NEEDED \ PROPOSED STATEMENT OF WORK

Proposed Tasks

The selected Proposer will engage in strategic planning consultation with Department staff and an advisory committee. The selected proposer will also conduct strategic plan development tasks including: preparation, research, surveys, community engagement, facilitation of meetings, information gathering, draft plan development, plan refinements, meetings with stakeholders, final recommendations, and ultimately creating the final strategic plan. The plan will be informed from a 360º analysis with participation from internal teams, partner organizations, and recipients of Department's program funding.

The plan shall identify high-level objectives specifically related to Business Oregon's existing mission, vision, and values. The plan shall also include an analysis of the Department's strengths, weaknesses, opportunities, and threats (SWOT analysis). In addition to the SWOT analysis, an analysis of external factors impacting the agency should be conducted using the PESTLE approach (Political, Economical, Sociological, Technological, Legal, and Environmental). The plan will also deliver strategies that can be used to achieve the Department's measurable objectives and provide recommended metrics to gauge how successful the Department achieving those objectives.

The planning process will incorporate data and research and consider innovative approaches to serve Oregon's unique regional communities. The process to develop the plan will require analysis and consideration of external factors, economic and workforce trends, and their impact on the Department's approach to economic development.

The successful proposer will not conduct research and then produce a strategic plan in a vacuum. Rather, the selected Proposer will demonstrate how they will facilitate the creation of a plan with Business Oregon, including: facilitating staff conversations and ideas, receiving feedback from stakeholders, and rendering it into a written plan as we go through the process together.

Key deliverables include:

A written comprehensive strategic plan outlining in detail each objective for Business Oregon, supporting strategies to achieve each objective, and examples of tactics to carry out the strategies.

In addition to objectives for the overall organization, three additional sets of objectives shall be developed, specific to:

1. Improving customer service.
2. What type of data the Department should collect, manage, and share with the public.
2. How the Department should run its internal operations.

The strategic plan shall also include metrics for how Business Oregon can measure its success in carrying out the objectives of the strategic plan. Metrics should be SMART (specific, measurable, attainable, relevant, and timely). An executive summary and PowerPoint deck shall also be produced to be used by Business Oregon in sharing the strategic plan with stakeholders.

1. Department SWOOT Analysis: A SWOT analysis of the organization, informed through industry-accepted processes.
    a. Strengths
    b. Weaknesses
    c. Opportunities
    d. Threats

2. Agency PESTLE Analysis: Analysis of external factors impacting the agency, informed through industry-accepted processes using the PESTLE approach.

    a. Political
    b. Economical
    c. Social
    d. Technological
    e. Legal
    f. Environmental

3. Department Goals (priorities/objectives): What are the overarching objectives of the organization? Currently, these are the “priorities” in the Department’s 2018-2022 strategic plan.
    a. Business Goals
    b. Customer Service Goals: Who are Business Oregon’s customers and how could the Department meet their needs more efficiently and effectively?
    c. Data Goals: How do our business and customer service goals tie to the key performance metrics data we should collect and measure

4. Department Operations Plan: The Department does not have a separate and distinct Operations Plan, the priority/objective to “Ensure an Inclusive, Transparent, and Fiscally Healthy Organization” and its underlying strategies in the previous 2018-22 strategic plan are relevant to the requested “Operations Plan.”
    a. Operations Plan Narrative
    b. Operations Plan Objectives: Refine internal operational goal, provide operational strategies to align with agency priorities.

1.3 QUESTIONS AND CLARIFICATIONS

All inquiries, whether relating to the RFP process, administration, deadline or award, or to the intent or technical aspects of the services must be submitted via email to:

Mindee Sublette, Procurement and Contracts Specialist
Oregon Business Development Department
775 Summer St., NE, Suite 200
Salem, OR 97301-1280
Telephone: 971-600-7974
Email: mindee.sublette@biz.oregon.gov

All questions must be received **not later than (5) calendar days prior** to Proposal due date specified on the title page of this RFP.

Substantive questions and answers will be issued as official addenda to this RFP. Changes or modifications to this RFP shall be binding on Department only if in the form of written addenda issued by Department.

The Department will provide addenda only to firms directly solicited. Anyone who has received a copy of this RFP from a source other than Department is responsible for checking with designated procurement staff - aside from requested copies, Department is not responsible for sending addenda to any unknown potential Proposers.

Department may require any clarification it needs to understand a Proposal.

1.4 PROTESTS AND REQUESTS

1.4.1 RFP PROTESTS AND CHANGE REQUESTS

Proposers who believe RFP specifications are unnecessarily restrictive or limit competition, or who wish to suggest scope of work elements or revised scoring criteria more likely to assist in selecting the best Proposer, are encouraged to submit a solicitation "protest." All protests concerning the RFP must be submitted in writing to the procurement staff person identified in section 1.3 not later than seven calendar days prior to the Proposal due date specified on the cover page of this RFP. A protest must clearly, specifically and in detail explain the reason(s) for the protest and specify any proposed changes to the RFP specifications. Department will respond to protests in writing. Department will not consider any solicitation protest submitted after the deadline established in this subsection.

1.4.2 NO AWARD PROTEST REQUIREMENTS

As an Intermediate Procurement, no award protest opportunity is required or allowed.

1.5 DUE DATE

Proposals must be received by **May 16, 2023, on or before 3:00 p.m. Pacific Time**. Absolutely no Proposals will be accepted after this date and time. Department relies on the State of Oregon email system clock to determine the correct time and is not responsible for any delays or difficulties experienced in the transmission of any Proposal. **Please do not wait until the last minute to email your Proposal; it will be too late to correct any problems.**

1.6 ELECTRONIC RESPONSES BY OREGON BUYS AND EMAIL ONLY

Only electronic proposals sent by email are acceptable. Proposals sent by fax, regular mail, and physical deliveries are not acceptable. **Please reference the RFP title and RFP number in the email subject line**.

Proposals will be received only at the following email address: mindee.sublette@biz.oregon.gov.

The Department will accept Proposals as PDF electronic files. Files in excess of 15 megabytes must be submitted incrementally. Proposals must not be submitted as .zip, .exe or .com files, only PDF.

1.7 NO LATE OR MISDIRECTED SUBMISSION OF PROPOSALS

Submittals that are late or misdirected will be considered non-responsive, without exception. The Department is not responsible for errors of any kind involved with electronic submission, nor for notifying Proposers of complete or incomplete receipt of a Proposal.

1.8 FORMAT FOR PROPOSALS

A Proposal must be organized in accordance with the list of scored criteria in section 2.2. A Proposal **must not exceed 20 pages**, *excluding* cover sheet (Attachment A) and the requested references. Department will consider the pages up to the allowable number overall and specified in specific subsections of section 2.2 and discard all pages in excess of the allowable number.

One (1) page is defined as: one side of a single 8-1/2" x 11" page, with 12-point minimum font size for the substantive text. Proposers may use their discretion for the font size of other materials (e.g., graphics, charts). Any page or partial page with substantive text, graphics, charts, resumes, etc., will be counted as one (1) page.

1.9 COVER SHEET

A Proposal must include a completed Cover Sheet (substantially in the form of Attachment A), signed by a duly authorized representative of the Proposer empowered to bind the Proposer.

1.10 PUBLIC RECORDS

This RFP, and one copy of every proposal accepted in response to it, will be kept by Department and made a part of its records. All accepted Proposals will become part of the public file without obligation to Department. If a Proposal contains any information that may be exempt from disclosure under the Oregon Public Records Law, ORS 192.410 through 192.505, the Proposer must clearly designate that portion of its Proposal it considers to be exempt, along with a justification and citation to the authority relied upon. Application of the Uniform Trade Secrets Act (UTSA), ORS 646.461 and 646.475, and the Oregon Public Records Law will determine whether any information is actually exempt from disclosure. Identifying an entire Proposal as exempt from disclosure is not acceptable and will not be effective to exempt the Proposal or any part of it from disclosure. Failure to identify the portion of the Proposal claimed as exempt from disclosure, and to specify a justification and the authority relied upon, will be deemed a waiver of any future claim based on disclosure of that information.

1.11 TERMS AND CONDITIONS

By submitting its Proposal, the selected Proposer agrees to be bound by the terms and conditions of a standard State of Oregon Personal/Professional Services Contract, including requirements for insurance as determined by Department. **Any Proposal that is conditioned on Department's acceptance of any other terms and conditions or rights to negotiate will be rejected as non-responsive.**

PROPOSAL SUBMISSION CHECKLIST FOR USE BY PROPOSERS - INFORMATION ONLY
☐ Due Date Met
☐ Proposal Addressed Correctly
☐ Proposal in Acceptable Electronic File Type(s)
☐ Proposal Format and Page Limit Requirements Met
☐ Signed Cover Sheet (Attachment A) Included
☐ List of References (Attachment B) Included
☐ Proposal Does Not Include Conditional Language About Terms and Conditions
☐ Public Records Disclosure Exemption Statement Included (If Applicable)

2.0 INFORMATION REQUESTED FROM PROPOSERS; SCORED CRITERIA

2.1 REFERENCES

Proposers **must** fill out and submit RFP Attachment B, listing applicable references. References will not be scored, but will be used as part of a "responsibility" check to verify the Proposer's ability to perform.

2.2 SCORED INFORMATION

A) Qualifications 45 Points maximum

Please submit answers to the following prompts:

1.) Name the person or people who would conduct the work described above and briefly describe their qualifications and relevant individual experiences.

2.) Explain any expertise specific to strategic planning, preferably for public entities.

3.) Briefly describe not more than three projects performed that are most comparable to the requested services, including their date, duration, scope, and outcomes.

B) Project Approach 45 Points maximum

1.) Please provide a detailed description of the techniques, approaches, and methods that you will use to deliver the planning project as requested. You may also critique the proposed statement of work in section 1.2 with any recommended changes or optional tasks to include.

2.) Please discuss strategies for engaging a diverse group of stakeholders, tribes, communities, businesses, and other partners. Include your experience engaging with diverse communities.

3.) Please provide a timeline of the project, as you would propose carrying it out.

C) Price (no page limit) 10 Points maximum

1.) Please provide a breakdown of the costs associated with delivering the project as you have described in the previous sections. Please list billing rates for the team members listed, and any other costs.

3.0 EVALUATION PROCESS

The selection process will be administered in accordance with the authority and procedures in ORS 279B.070, and OAR Chapter 123, Division 6 and OAR 137-047- 0270. Proposals received on time will be reviewed against any Pass/Fail criteria. Proposals meeting those criteria will be forwarded to an evaluation committee that will independently score each Proposal according to the scored criteria in Section 2.

Without limiting the possibilities allowed under OAR 137-047-0270, the Department may, at any time in its sole discretion, (a) provide notice to a Proposer of selection for Contract negotiation and possible award; (b) gather more information for evaluation, (c) provide notice to a Proposer(s) of non-selection; or (d) provide notification to Proposer(s) that the RFP is cancelled (and either that the RFP may be resolicited or that Department intends to take no further action with respect to the RFP).

The Department reserves the right to employ any of the procedures allowed by Oregon Administrative Rule 137-047-0270, such as additional competitive steps or Proposals, modified or additional selection criteria, interviews, competitive simultaneous discussions or negotiations, etc. Information or issues revealed by a Proposer's questions or Proposal, may, in the Department's sole discretion, trigger such modifications or further steps. If there are further steps beyond the initial Proposal and scoring, the scoring results from the first step and any subsequent step will be added together.

Department reserves the right to reject any or all Proposals for good cause if it is in the public interest, and is not liable for any costs a Proposer incurs while preparing or presenting its Proposal or during further evaluation stages.

4.0 NEGOTIATIONS

The Department, in its sole discretion, reserves the right to negotiate all terms and conditions in the standard State of Oregon contract to the extent allowed by law.

If negotiations with the top ranked Proposer are not successful, Department may terminate negotiations and begin negotiating with the next highest ranked Proposer.

RFP ATTACHMENT A - COVER SHEET & CERTIFICATIONS

STATEMENT OF PROPOSAL to Oregon Business Development Department

_____ (Legal Name of Proposer) accepts all the terms and conditions contained in the "Strategic Planning Consultant" RFP, and a standard State of Oregon contract (as they may have been modified or reserved for negotiation).

☐ Corporation ☐ Professional Corporation ☐ Partnership ☐ Limited Partnership
☐ Ltd. Liability Company ☐ Ltd. Liability Partnership ☐ Sole Proprietorship ☐ Other _____
Mailing Address _____
_____

Type name of contact/authorized representative _____

Email address _____

Telephone _____ Other _____

Type name of person(s) authorized to sign Contract _____

Affirmative Action, Nondiscrimination: Department is an equal-employment-opportunity employer and values diversity in its work force. It also requires Proposers to have an operating policy as an equal employment opportunity employer, and to follow good faith diversity efforts when subcontracting.

We certify that we have a formal statement of nondiscrimination in employment policy and have an affirmative action program if over 50 employees. (Firms of 50 people or less do not need a formal program, but must have a policy). Does your firm have 50 or more employees? ☐ Yes ☐ No

We also certify that we have not and will not discriminate against a subcontractor in the awarding of a subcontract because the subcontractor is a minority, women or emerging small business enterprise certified under ORS 200.055, and will follow good faith efforts in ORS 200.045 during any subcontracting.

Responsibility Certifications

Has your company ever been declared in breach of any contract to provide services for unperformed or defective work?

☐ Yes ☐ No

If "yes," explain._____

Has any employee or agent of your company been convicted under state or federal law of embezzlement, theft, forgery, bribery, falsification or destruction of records, receiving stolen property or any other offense indicating a lack of business integrity or business honesty?

☐ Yes ☐ No

If "yes," explain._____

Has your company or any employee or agent of your company been indicted under state or federal false claims or antitrust laws, or charged with any other criminal offense arising out of obtaining, attempting to obtain, or performing a public or private contract or subcontract? ☐ Yes ☐ No

If "yes," explain._____

During the last ten years, has your firm changed majority ownership or been the debtor in a bankruptcy case? ☐ Yes ☐ No

If "yes," explain._____

Does your firm have any outstanding judgments pending against it? ☐ Yes ☐ No

If "yes," explain._____

During the last ten years, has your firm been a party to litigation, arbitration or mediation where the amount in dispute exceeded $10,000? ☐ Yes ☐ No

If "yes," explain. (Include court, and party names.) _____

Conflicts of Interest: Please select (only) one of the following three options:

☐ Our firm has no current, known actual, potential, or reasonably perceived, financial or other interest in the outcome of the services described in this RFP.

☐ Our firm has a potential or reasonably perceived financial or other interest in the outcome of the services described in this RFP as described here: _____. Our firm proposes to mitigate the potential or perceived conflict according to the following plan: _____.

☐ Our firm has an actual financial or other interest in the outcome of the services described in this RFP as described here: _____.

What does "financial interest" mean?

If your firm, or employee of your firm working on the project (or a member of the employee's household), will/may or may be perceived to receive or lose private income depending on government business choices based on your firm's services, findings or recommendations, this must be listed as a financial interest. An example would be ownership in physical assets affected by government business choices related to these services. The possibility of contracting for further consulting services is not included in this definition and is not prohibited.

What does "other interest" mean?

If your firm, or employee of your firm working on the project (or a member of the employee's household), will/may or may be perceived to have political, legal or any other interests that will affect what goes into your firm's services, findings or recommendations, or will be/may be, or may be perceived to be, affected by government business choices related to these services, this must be listed as an other interest.

Tax Information and Tax Compliance: The undersigned certifies and swears under penalty of perjury that: I am authorized to act on behalf of Contractor, I have authority and knowledge regarding Contractor's payment of taxes, the taxpayer identification number and other information provided on Contractor's IRS W-9 form is correct, Contractor is not subject to tax withholding, and Contractor is not in violation of any Oregon tax laws, including but not limited to a state tax imposed by ORS 320.005 to 320.150 and 403.200 to 403.250 and ORS chapters 118, 314, 316, 317, 318, 321 and 323 and the elderly rental assistance program under ORS 310.630 to 310.706 and local taxes administered by the Department of Revenue under ORS 305.620. Contractor shall continue to comply with the tax laws of this state or a political subdivision of this state during the term of the public contract.

Signature of Authorized Representative certifying the truth of all statements:

*[signature]*_____

[Type name] Date

RFP ATTACHMENT B - LIST OF REFERENCES

Department may check to determine whether these references support Proposer's ability to comply with the requirements of this RFP. Department may use references to obtain additional information, or verify any information needed. Department may contact any reference (submitted or not) to verify Proposer's qualifications.

Proposer must provide **at least three** references from current or former client for similar projects performed within the last four years. References must be able to verify the quality of that related work.

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1. Reference Entity Name: _____

Reference Contact Name: _____

Contact Telephone Number: _____

Contact Email Address: _____

2. Reference Entity Name: _____

Reference Contact Name: _____

Contact Telephone Number: _____

Contact Email Address: _____

3. Reference Entity Name: _____

Reference Contact Name: _____

Contact Telephone Number: _____

Contact Email Address: _____

RFP ATTACHMENT C – SAMPLE CONTRACT

STATE OF OREGON PERSONAL/PROFESSIONAL SERVICES CONTRACT
Number: Contract Number
Title: **Title**

This Contract ("Contract") is between the State of Oregon, acting by and through its Oregon Business Development Department ("OBDD"), and Contractor Name ("Contractor").

1. Effective Date and Duration. This Contract is effective once fully executed, and approved as required by applicable law. Unless terminated earlier, this Contract terminates when OBDD accepts Contractor's performance or on Date and Year whichever date occurs first. Termination does not extinguish or prejudice OBDD's right to enforce this Contract with respect to any breach of a Contractor warranty or any default or defect in Contractor performance that has not been cured.

2. Statement of Work. The Statement of Work (the "Services"), including the delivery schedule for such Services, is contained in Exhibit A.

3. Compensation. The maximum payable to Contractor under this Contract, which includes any allowable expenses, is $Dollar Amount . Subject to the terms and conditions of this Contract, OBDD shall pay Contractor for Services rendered under this Contract as described in Exhibit A.

4. Contract Documents. This Contract consists of the following documents, incorporated by reference, which are listed in descending order of precedence: this Contract less all exhibits, attached Exhibit A and Exhibit B.

5. Independent Contractor; Responsibility for Taxes and Withholding

a. Contractor will perform all required Services as an independent contractor. Although OBDD reserves the right (i) to determine the delivery schedule for the Services to be performed and (ii) to evaluate the quality of the completed performance, OBDD cannot and will not control, and Contractor is responsible for determining, the means and manner of Contractor's performance.

b. If Contractor is currently performing services for the State of Oregon or the federal government, Contractor by signature to this Contract declares and certifies that: Contractor's Services to be performed under this Contract create no potential or actual conflict of interest as defined by ORS 244, and no rules or regulations of Contractor's employing agency (state or federal) prohibit Contractor's Services under this Contract. Contractor is not an "officer," "employee," or "agent" of OBDD, as those terms are used in ORS 30.265.

c. Contractor is responsible for all federal or state taxes applicable to compensation or payments paid to Contractor under this Contract, and unless OBDD is aware that Contractor is subject to backup withholding, OBDD will not withhold from such compensation or payments any amount(s) to cover Contractor's federal or state tax obligations. Contractor is not eligible for any social security, unemployment insurance or workers' compensation benefits from compensation or payments paid to Contractor under this Contract, except as a self-employed individual.

6. Subcontracts and Assignment; Successors and Assigns

a. Except as described in Exhibit A, Contractor may not enter into any subcontracts for any of the Services required by this Contract, or assign or transfer any of its interest in this Contract, without OBDD's prior written consent. In addition to any other provisions OBDD may require, Contractor will include in any permitted subcontract under this Contract a requirement that the subcontractor be bound by Sections 5, 6, 10, 11, 14, 15, and 18 of this Contract as if the subcontractor were the Contractor. OBDD's consent

SAMPLE

to any subcontract, assignment or transfer does not relieve Contractor of any of its duties or obligations under this Contract. Any subcontractor, assignee or transferee is considered Contractor's agent.

b. The provisions of this Contract are binding upon and will inure to the benefit of the parties hereto, and their respective successors and permitted assigns, if any.

7. No Third Party Beneficiaries. OBDD and Contractor are the only parties to this Contract and are the only parties entitled to enforce its terms. Nothing in this Contract gives, or is to be construed to give any benefit or right, whether directly, indirectly or otherwise, to third persons unless such third persons are individually identified by name and expressly described as intended beneficiaries of the terms of this Contract.

8. Funds Available and Authorized; Payments

a. No other agency or department of the State of Oregon will compensate Contractor for Services performed under this Contract. OBDD has sufficient funds currently available and authorized for expenditure to finance the costs of this Contract within OBDD's biennial appropriation or limitation. Contractor understands and agrees that OBDD's payment of amounts under this Contract attributable to Services performed after the last day of the current biennium is contingent on OBDD receiving from the Oregon Legislative Assembly funding, appropriations, limitations, allotments or other expenditure authority sufficient to allow OBDD, in the exercise of its reasonable administrative discretion, to continue to make payments under this Contract. Nothing in this Contract is to be construed as permitting any violation of Article XI, section 7 of the Oregon Constitution or any other law regulating liabilities or monetary obligations of the State of Oregon.

b. OBDD will only pay for completed Services that are accepted by OBDD.

9. Representations and Warranties

a. Contractor's Representations and Warranties. Contractor represents and warrants to OBDD that (1) Contractor has the power and authority to enter into and perform this Contract, (2) this Contract is a valid and binding obligation of Contractor enforceable in accordance with its terms, (3) the Services under this Contract will be performed in accordance with the highest standards prevalent in the industry, and (4) Contractor will, at all times during the term of this Contract, be qualified, professionally competent, and duly licensed to perform the Services, and (5) Contractor (to the best of Contractor's knowledge, after due inquiry), for a period of no fewer than six calendar years preceding the effective date of this Contract, faithfully has complied with (i) all tax laws of this state, including but no limited to ORS 305.620 and ORS chapters 316, 317, and 318; (ii) any tax provisions imposed by a political subdivision of this state that applied to Contractor, to Contractor's property, operations, receipts, or income, or to Contractor's performance of or compensation for any work performed by Contractor; (iii) any tax provisions imposed by a political subdivision of this state that applied to Contractor, to Contractor's property, operations, receipts, or income, or to Contractor's performance of or compensation for any work performed by Contractor; and (iv) any rules, regulations, charter provisions, or ordinances that implemented or enforced any of the foregoing tax laws or provision.

b**. Warranties cumulative.** The warranties set forth in this section are in addition to, and not in lieu of, any other warranties provided.

10. Ownership of Work Product

a. Definitions. As used in this Section 10, and elsewhere in this Contract, the following terms have the meanings set forth below:

(i) "Contractor Intellectual Property" means any intellectual property owned by Contractor and developed independently from the Services.

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(ii) "Third Party Intellectual Property" means any intellectual property owned by parties other than OBDD or Contractor.

(iii) "Work Product" means every invention, discovery, work of authorship, trade secret or other tangible or intangible item and all Services that Contractor delivers or is required to deliver to OBDD pursuant to this Contract.

b. Ownership and License. All intellectual property rights in the Work Product created by Contractor pursuant to this Contract, including derivative works and compilations, are the exclusive property of OBDD. All Work Product authored by Contractor under this Contract is deemed "work made for hire" to the extent permitted by the United States Copyright Act. To the extent OBDD is not the owner of the intellectual property rights in such Work Product, Contractor hereby irrevocably assigns to OBDD any and all of its rights, title, and interest in such Work Product. Upon OBDD's reasonable request, Contractor shall execute such further documents and instruments reasonably necessary to fully vest such rights in OBDD. Contractor forever waives any and all rights relating to original Work Product created pursuant to this Contract, including without limitation, any and all rights arising under 17 USC §106A or any other rights of identification of authorship or rights of approval, restriction or limitation on use or subsequent modifications.

In the event that intellectual property rights in the Work Product are Contractor Intellectual Property, Contractor hereby grants to OBDD an irrevocable, non-exclusive, perpetual, royalty-free license to use, make, reproduce, prepare derivative works based upon, distribute copies of, perform and display the Contractor Intellectual Property, and to authorize others to do the same on OBDD's behalf.

To the extent Contractor has the authority, Contractor will sublicense or pass through to OBDD all intellectual property rights in the Work Product that are Third Party Intellectual Property. Contractor represents and warrants that it has provided written disclosure to OBDD of all Third Party Intellectual Property that must be independently licensed by the OBDD to fully enjoy the benefits of the Work Product. If Contractor failed to provide such written disclosure, Contractor will secure on OBDD's behalf and in the name of OBDD an irrevocable, non-exclusive, perpetual, royalty-free license to use, make, reproduce, prepare derivative works based upon, distribute copies of, perform and display the Third Party Intellectual Property employed in the Work Product, and to authorize others to do the same on OBDD's behalf.

11. Indemnity

a. Claims for Other than Professional Liability. Contractor will defend (subject to ORS chapter 180), save and hold harmless the State of Oregon, the Oregon Business Development Commission and its members, OBDD, their officers, agents and employees from all claims, suits or actions of whatsoever nature, including intentional acts resulting from or arising out of the activities of Contractor or its subcontractors, agents or employees under this Contract.

b. Claims for Professional Liability. Contractor will defend (subject to ORS chapter 180), save and hold harmless the State of Oregon, the Oregon Business Development Commission and its members, OBDD, their officers, agents and employees, from all claims, suits or actions arising out of the professional negligent acts, errors or omissions of Contractor or its subcontractors, agents or employees in performance of professional services under this agreement.

c. Control of Defense and Settlement. Contractor will have control of the defense and settlement of any claim that is subject to sections 11.a or 11.b; however, neither Contractor nor any attorney engaged by Contractor will defend the claim in the name of the State of Oregon or any agency of the State of Oregon, nor purport to act as legal representative of the State of Oregon or any of its agencies, without first receiving authority to act as legal counsel for the State of Oregon from the Oregon Attorney General, in a form and manner determined appropriate by the Attorney General, nor will Contractor settle any claim

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on behalf of the State of Oregon without the approval of the Attorney General. The State of Oregon may, at its election and expense, assume its own defense and settlement.

12. Insurance. Contractor will provide insurance as indicated on Exhibit B.

13. Termination

a. Parties' Right to Terminate For Convenience. This Contract may be terminated at any time by mutual written consent of the parties.

b. OBDD's Right To Terminate For Convenience. OBDD may, at its sole discretion, terminate this Contract upon 30 days notice to Contractor.

c. OBDD's Right to Terminate For Cause. OBDD may terminate this Contract immediately upon notice to Contractor, or at such later date as OBDD may establish in such notice, upon the occurrence of any of the following events:

(i) OBDD fails to receive funding, or appropriations, limitations or other expenditure authority at levels sufficient to pay for Contractor's Services;

(ii) Federal or state laws, regulations or guidelines are modified or interpreted in such a way that either the Services under this Contract is prohibited or OBDD is prohibited from paying for such Services from the planned funding source;

(iii) Contractor no longer holds any license or certificate that is required to perform the Services; or

(iv) Contractor commits any material breach or default of any covenant, warranty, obligation, certification, or agreement under this Contract, including but not limited to a violation of Section 9a(5) or a failure to comply with Section 15, fails to perform the Services under this Contract within the time specified herein or any extension thereof, or so fails to pursue the Services as to endanger Contractor's performance under this Contract in accordance with its terms.

d. Contractor's Right to Terminate for Cause. Contractor may terminate this Contract upon 30 days' notice to OBDD if OBDD fails to pay Contractor pursuant to the terms of this Contract and OBDD fails to cure within 30 business days after receipt of Contractor's notice, or such longer period of cure as Contractor may specify in such notice.

e. Remedies

(i) In the event of termination pursuant to Sections 13a, 13b, 13c(i), 13c(ii) or 13d, Contractor's sole remedy is a claim for the sum designated for accomplishing the Services multiplied by the percentage of Services completed and accepted by OBDD, less previous amounts paid and any claim(s) which State has against Contractor. If previous amounts paid to Contractor exceed the amount due to Contractor under this subsection, Contractor will promptly pay any excess to OBDD.

(ii) In the event of termination pursuant to Section 13c(iii) or 13c(iv), OBDD has any remedy available to it under this Contract, at law or in equity, including but not limited to monetary damages. If it is determined for any reason that Contractor was not in default under Section 13c(iii) or 13c(iv), the rights and obligations of the parties will be the same as if the Contract was terminated pursuant to Section 13b.

f. Contractor's Tender Upon Termination. Upon receiving a notice of termination of this Contract, Contractor will immediately cease all activities under this Contract, unless OBDD expressly directs otherwise in such notice. Upon termination of this Contract, Contractor will deliver to OBDD all documents, information, works-in-progress and other property that are or would be deliverables had the

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Contract been completed. Upon OBDD's request, Contractor will surrender to anyone OBDD designates, all documents, research or objects or other tangible things needed to complete the Services.

14. Records Maintenance; Access. Contractor will maintain all fiscal records relating to this Contract in accordance with generally accepted accounting principles. In addition, Contractor will maintain any other records pertinent to this Contract in such a manner as to clearly document Contractor's performance. Contractor acknowledges and agrees that OBDD and the Oregon Secretary of State's Office and the federal government and their duly authorized representatives have access to such fiscal records and other books, documents, papers, plans and writings of Contractor that are pertinent to this Contract to perform examinations and audits and make excerpts and transcripts. Contractor will retain and keep accessible all such fiscal records, books, documents, papers, plans, and writings for a minimum of six (6) years, or such longer period as may be required by applicable law, following final payment and termination of this Contract, or until the conclusion of any audit, controversy or litigation arising out of or related to this Contract, whichever date is later.

15. Compliance with Applicable Law. Contractor shall comply with all federal, state and local laws, regulations, executive orders and ordinances applicable to the Services under this Contract. Without limiting the generality of the foregoing, Contractor expressly agrees to comply with: (i) Title VI of Civil Rights Act of 1964; (ii) Section V of the Rehabilitation Act of 1973; (iii) the Americans with Disabilities Act of 1990 and ORS 659A.142; (iv) all regulations and administrative rules established pursuant to the foregoing laws; and (v) all other applicable requirements of federal and state civil rights and rehabilitation statutes, rules and regulations. OBDD's performance under this Contract is conditioned upon Contractor's compliance with the provisions of ORS 279B.220, 279B.230, 279B.235, and 279B.270, which are incorporated by this reference. Contractor shall continue to comply with the tax laws of this state or a political sub-division of this state during the term of the public contract.

16. Business Registration. Contractor has provided to the Oregon Department of Revenue and the Secretary of State Corporation Division all information required by those agencies to do business in the State of Oregon relative to this Contract.

17. Force Majeure. Neither OBDD nor Contractor will be held responsible for delay or default caused by fire, riot, acts of God, terrorist acts, or other acts of political sabotage, or war where such cause was beyond the reasonable control of OBDD or Contractor, respectively. Contractor will, however, make all reasonable efforts to remove or eliminate such a cause of delay or default and will, upon the cessation of the cause, diligently pursue performance of its obligations under this Contract.

18. Survival. All rights and obligations cease upon termination of this Contract, except for the rights and obligations set forth in Sections 1, 8, 9, 10, 11, 13, 14, 15, 21, 25, and 26.

19. Time is of the Essence. Contractor agrees that time is of the essence under this Contract.

20. Notice. Except as otherwise expressly provided in this Contract, any notices will be given in writing by personal delivery, or mailing, postage prepaid, to:

OBDD: Contract Administrator
Oregon Business Development Department
775 Summer Street, Suite 200
Salem, OR 97301-1280

Contractor: According to the Contractor Data and Certification below

or to such other addresses or numbers as either party may later designate pursuant to this Section 20. Any notice so addressed and mailed is deemed to be given five (5) days after mailing. Any notice by personal delivery is deemed to be given when actually delivered.

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21. Severability. The parties agree that if any term or provision of this Contract is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions are not affected, and the rights and obligations of the parties are to be construed and enforced as if the Contract did not contain the particular term or provision held to be invalid.

22. Counterparts. This Contract may be executed in several counterparts, all of which when taken together constitute one agreement binding on all parties, notwithstanding that all parties are not signatories to the same counterpart. Each copy of the Contract so executed constitutes an original.

23. Oregon False Claims Act. Contractor acknowledges that the Oregon False Claims Act, ORS 180.750 to 180.785, applies to this Contract. Contractor certifies the truthfulness, completeness, and accuracy of any statement or claim it has made, it makes, it may make, or causes to be made that pertains to this Contract.

24. Disclosure of Social Security Number. Contractor must provide Contractor's Social Security number unless Contractor provides a federal tax ID number. This number is requested pursuant to ORS 305.385. Social Security numbers provided pursuant to this authority will be used for the administration of state, federal and local tax laws.

25. Choice of Law; Designation of Forum; Federal Forum

a. The laws of the State of Oregon (without giving effect to its conflicts of law principles) govern all matters arising out of or relating to this Contract, including, without limitation, its validity, interpretation, construction, performance, and enforcement.

b. Any party bringing a legal action or proceeding against any other party arising out of or relating to this Contract shall bring the legal action or proceeding in the Circuit Court of the State of Oregon for Marion County (unless Oregon law requires that it be brought and conducted in another county). Each party hereby consents to the exclusive jurisdiction of such court, waives any objection to venue, and waives any claim that such forum is an inconvenient forum.

c. Notwithstanding the preceding paragraph, if a claim must be brought in a federal forum, then it must be brought and adjudicated solely and exclusively within the United States District Court for the District of Oregon. This subsection (c) applies to a claim brought against the State of Oregon only to the extent Congress has appropriately abrogated the State of Oregon's sovereign immunity and is not consent by the State of Oregon to be sued in federal court. This subsection (c) is also not a waiver by the State of Oregon of any form of defense or immunity, including but not limited to sovereign immunity and immunity based on the Eleventh Amendment to the Constitution of the United States.

26. Merger Clause; Waiver. This Contract and the exhibits that are attached hereto and by this reference incorporated herein constitute the entire agreement between the parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Contract. No waiver, consent, modification or change of terms of this Contract binds either party unless in writing and signed by both parties, and all necessary State approvals have been obtained. Such waiver, consent, modification or change, if made, is effective only in the specific instance and for the specific purpose given. The failure of OBDD to enforce any provision of this Contract does not constitute a waiver by OBDD of that or any other provision.

27. Amendments. OBDD may agree to amend this Contract without conducting further solicitation activities, to the extent provided in the solicitation document, if any, from which this Contract arose, and to the extent permitted by applicable statutes and administrative rules. No amendment to this Contract is effective unless it is in writing signed by the parties, and all approvals required by applicable law have been obtained.

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28. Attorney Fees and Other Expenses. To the extent permitted by the Oregon Constitution and the Oregon Tort Claims Act, the prevailing party in any dispute arising from this Contract is entitled to recover from the other its reasonable attorney fees, costs and expenses at trial and on appeal. Reasonable attorney fees cannot exceed the rate charged to the State by its attorneys. The Contractor will, on demand, pay to the State reasonable expenses incurred by the State in the collection of such payments.

29. Confidential Information.

a. In the course of performing Services under this Contract, Contractor acknowledges that it and its employees or agents may be exposed to or acquire information that is confidential to OBDD or OBDD's clients. Any and all information of any form obtained by Contractor or its employees or agents in the performance of this Contract shall be deemed to be confidential information of OBDD ("Confidential Information"). Any reports or other documents or items which result from the use of the Confidential Information by Contractor shall be treated with respect to confidentiality in the same manner as the Confidential Information. Confidential Information shall be deemed not to include information that (i) is or becomes (other than by disclosure by Contractor) publicly known or is contained in a publicly available document; (ii) is furnished by OBDD to others without restrictions similar to those imposed by this Contract; (iii) is rightfully in Contractor's possession without the obligation of nondisclosure prior to the time of its disclosure under this Contract; or (iv) is independently developed by employees or agents of Contractor who can be shown to have had no access to the Confidential Information.

b. Standard of Care. Contractor agrees to hold Confidential Information in strict confidence, using at least the same degree of care that Contractor uses in maintaining the confidentiality of its own confidential information, and not to copy, reproduce, sell, assign, license, market, transfer or otherwise dispose of, give, or disclose Confidential Information to third parties or use Confidential Information for any purposes whatsoever other than the provision of Services to OBDD hereunder, and to advise each of its employees and agents of their obligations to keep Confidential Information confidential.

c. Cooperation. Contractor agrees to comply with all reasonable requests by OBDD to ensure the confidentiality and nondisclosure of the Confidential Information, including without limitation (i) obtaining nondisclosure agreements, in a form approved by OBDD, from each of Contractor's employees and agents who are performing Services, and providing copies of such agreements to OBDD, and (ii) performing criminal background checks on each of Contractor's employees and agents who are performing Services, and providing a copy of the results to OBDD.

CONTRACTOR DATA AND CERTIFICATION

Name (tax filing): Contractor
Address: Address, City, State and Zip
Email: Email
Telephone: Telephone. **Facsimile:**
Citizenship, if applicable: Non-resident alien ☐ Yes ☐ No
Business Designation (check one):

☐ Private for-profit, or non-profit Corporation ☐ Professional Corporation
☐ Partnership ☐ Limited Partnership
☐ Limited Liability Company ☐ Limited Liability Partnership
☐ Sole Proprietorship ☐ Other:

Above payment information must be provided prior to Contract approval. This information may be reported to the Internal Revenue Service (IRS) under the name and taxpayer identification submitted. (See IRS 1099 for additional instructions regarding taxpayer ID numbers.) Information not matching IRS records could subject Contractor to 31 percent backup withholding.

Certified Firms. ORS 200.090 requires all public agencies to "aggressively pursue a policy of providing opportunities for disadvantaged business enterprises, minority-owned businesses, woman-owned businesses, service-disabled veteran owned and emerging small businesses..." The OBDD encourages Contractor in any contracting activity to follow good faith efforts as described in ORS 200.045. Additional resources are provided by the Governor's Policy Advisor for Economic and

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Business Equity. Also, the Certification Office for Business Inclusion and Diversity at the Oregon Business Development OBDD maintains a list of certified firms and can answer questions. Search for certified COBID firms on the web at: https://oregon4biz.diversitysoftware.com/FrontEnd/VendorSearchPublic.asp.

CONTRACTOR DATA AND TAX LAW CERTIFICATION

The undersigned certifies and swears under penalty of perjury that: I am authorized to act on behalf of Contractor, I have authority and knowledge regarding Contractor's payment of taxes, the taxpayer identification number and other information provided on Contractor's IRS W-9 form [*or for an international vendor:* W-8 series form] is correct, Contractor is not subject to tax withholding, and Contractor is not in violation of any Oregon tax laws, including but not limited to a state tax imposed by ORS 305.380, 320.005 to 320.150 and 403.200 to 403.250 and ORS chapters 118, 314, 316, 317, 318, 321 and 323 and the elderly rental assistance program under ORS 310.657 and local taxes administered by the Department of Revenue under ORS 305.620. Contractor shall continue to comply with the tax laws of this state or a political subdivision of this state during the term of this Contract.

Contractor, by the signature below of its authorized representative, acknowledges that it has read this Agreement, understands it, and agrees to be bound by its terms and conditions.

CONTRACTOR: NO SERVICES MAY OCCUR PRIOR TO NECESSARY STATE APPROVALS

CONTRACTOR

By: _____ _____ _____

Approval Signature | Title | Date

OBDD

By: _____ _____ _____

Approval Signature | Title | Date

ATTORNEY GENERAL

_____ _____

Approved as to Legal Sufficiency (All Contracts over $150,000, unless exempted) | Date

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EXHIBIT A – STATEMENT OF WORK AND COMPENSATION

INTRODUCTION [if necessary or helpful]

STATEMENT OF WORK [to be negotiated]

Contractor shall…

COMPENSATION [to be negotiated]

Compensation. [Describe what we will pay for and when]

Invoices and Payments. Invoices must include the OBDD contract number, a description of services provided and the dates of service. Contractor will submit invoices requesting payment to OBDD's Contract Administrator for approval. OBDD's Contract Administrator is:

> Contract Administrator
> Oregon Business Development Department
> 775 Summer Street, Suite 200
> Salem, Oregon 97301-1280
> email addressemail address (503) phone numberphone number

or as may be otherwise designated through written notice. Contractor may not submit invoices any more frequently than once per month. OBDD reserves the right to request, in writing, full itemization and receipts for any or all labor and direct costs billed by the Contractor and such other items of costs as the OBDD requests. Contractor will provide receipts to OBDD within five (5) business days of OBDD's request. OBDD will not make payment to Contractor under the applicable invoice until OBDD has received all requested receipts from the Contractor. Any overdue payments by OBDD for an approved invoice are subject to ORS 293.462.

Corrective Work. Contractor is responsible to complete all Services, including deliverables, as defined in the Statement of Work to the satisfaction of OBDD. If OBDD, in its sole discretion, determines that the Services are unacceptable, Contractor is responsible to correct any deficiencies in the Services to OBDD's satisfaction without further compensation. OBDD may withhold other payments until any deficiencies have been corrected to OBDD's satisfaction.

Travel and Expenses. [to be negotiated] in no case may it exceed state per diem rates.

EXHIBIT B – INSURANCE

During the term of this Contract, Contractor will maintain in force at its own expense, each insurance noted below or the equivalent insurance for a company in Germany.

(OBDD must check boxes for #2, #3, & #4 as to whether insurance is required or not.)

1. ☒ **Required by OBDD of contractors with one or more workers, as defined by ORS 656.027**.

   All employers, including Contractor, that employ subject workers, as defined in ORS 656.027, will comply with ORS 656.017 and will provide workers' compensation insurance coverage for those workers, unless they meet the requirement for an exemption under ORS 656.126(2). Contractor will require and ensure that each of its subcontractors complies with these requirements.

2. ☐ **Required by OBDD** ☒ **Not required by OBDD**

   Professional Liability insurance with a combined single limit, or the equivalent, of not less than ☐ $200,000, ☐ $500,000, ☐ $1,000,000, or ☐ $2,000,000 each claim, incident or occurrence This is to cover damages caused by error, omission or negligent acts related to the professional services to be provided under this Contract.

3. ☒ **Required by OBDD** ☐ **Not required by OBDD**

   General Liability insurance with a combined single limit, or the equivalent, of not less than ☐ $200,000,
   ☒ $500,000, ☐ $1,000,000, or ☐ $2,000,000 each occurrence for Bodily Injury and Property Damage. It will include contractual liability coverage for the indemnity provided under this Contract. The policy will be endorsed to name State of Oregon, the Oregon Business Development Department, its officers and employees as Additional Insureds but only with respect to the Contractor's commercial services to be provided under this Contract.

4. ☒ **Required by OBDD** ☐ **Not required by OBDD**

   Automobile Liability Contractor will obtain, at Contractor's expense, and keep in effect during the term of this Contract, Commercial Business Automobile Liability Insurance covering all owned, non-owned, or hired vehicles. This coverage may be written in combination with the Commercial General Liability Insurance (with separate limits). Combined single limit per occurrence cannot be less than ☐ Oregon Financial Responsibility Law (ORS 806.060), ☐ $200,000, ☒ $500,000, or ☐ $1,000,000, each accident for Bodily Injury and Property Damage, including coverage for owned, hired or non-owned vehicles, as applicable. The policy will be endorsed to name the State of Oregon, the Oregon Business Development Department, its officers and employees as Additional Insureds but only with respect to the Contractor's commercial services to be provided under this Contract.

5. **Notice of cancellation or change.** There will be no cancellation, material change, reduction of limits or intent not to renew the insurance coverage(s) without 30 days prior written notice from the Contractor or its insurer(s) to OBDD.

6. **Certificates of insurance.** As evidence of the insurance coverages required by this Contract, the Contractor will furnish acceptable insurance certificates to OBDD prior to commencing the Services. The certificate will specify **"The State of Oregon, the Oregon Business Development Department, its officers and employees"** as Additional Insureds for Automobile and General Liability. It need not reference a specific Contract name or number. Insuring companies or entities are subject to OBDD acceptance. If requested, complete copies of insurance policies, trust agreements, etc. will be provided to OBDD. The Contractor is financially responsible for all pertinent deductibles, self-insured retentions and/or self-insurance.